

3.	25CV1486	CRETE CRUSH LLC VS. AM DEVELOPMENT, INC ET AL
MOTION TO BE RELIEVED		

Counsel for AM Development, Inc. and Adam Murray move the Court for an order to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362.

A declaration on Judicial Council Form MC-052 accompanies the motion, as required by California Rules of Court, Rule 3.1362, stating that the clients have failed to cooperate with counsel regarding outstanding balances for legal fees and costs.

Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362 allow an attorney to withdraw after notice to the client. Proof of service of the motion on the Defendants at their last known address and on counsel for Plaintiff was filed on April 1, 2026.

A Case Management Conference is currently scheduled for August 11, 2026. The court will need an amended order in compliance with California Rules of Court, Rule 3.1362(e).

TENTATIVE RULING #3: ABSENT OBJECTION, THE MOTION IS GRANTED. COUNSEL IS DIRECTED TO SERVE A COPY OF THE SIGNED ORDER (FORM MC-053) ON THE CLIENT AND ALL PARTIES THAT HAVE APPEARED IN THE CASE IN ACCORDANCE WITH CALIFORNIA RULES OF COURT, RULE 3.1362(e).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

4.	25CV2156	LINKED HOME LOANS, LLC VS. PAULA HARVEY
DEEM REQUESTS FOR ADMISSIONS 1-25 ADMITTED AND SANCTIONS		

Motion to Deem Admitted Matters Specified in Request for Admissions

On December 12, 2025, Plaintiff served a Request for Admissions (RFA”) on Defendant as part of discovery in this lawsuit. Defendant returned responses with a caption from another case on January 15, 2026. Defendant retained counsel who provided revised responses by email on January 16, 2026. Plaintiff did not contact counsel Defendant at any time in any manner other than via email. Plaintiff has filed this motion seeking to have the matters specified in the RFA deemed admitted. Defendant opposes the motion maintaining responses were provided and/or that any defects in the responses be excused on the grounds of inadvertence, mistake and excusable neglect, pursuant to Code of Civil Procedure § 2033.280(a)(2).²

VERIFICATION

As to the verification of the proposed responses, Defendant cites case law holding that “[u]nsworn responses are tantamount to no responses at all. However, the case of *Allen-Pac., Ltd. v. Superior Ct.*, 57 Cal. App. 4th 1546 addressed a discovery response that was unsigned. In *Melendrez v. Superior Ct.*, 215 Cal. App. 4th 1343, (2013) a response on behalf of a corporation was signed by counsel, which did not meet the statutory requirement that the RFA response be signed by an officer or an agent of the corporation. Neither case mandates the rejection of Plaintiff’s personal signature under penalty of perjury on the proposed RFA responses. Plaintiff was pro per when the responses were initially drafted, likely leading to errors in correcting the caption, and can be presumed to have reviewed the responses. The objection to the date of the verification and that it was the same verification is misplaced. There is no basis for the court to conclude the verification is defective because of errors in the caption or that it needed to be resigned for such reason. The court also rejects the method of service as a basis for finding there to be no responses. The Request for Admissions was propounded via email, though they were also mailed. However, Plaintiff claims the date of service as the date of the email to calculate the date responses were due, not the extended date based on mail service. The court also notes there was no meet and confer as required regarding the issue, as email is not sufficient. As Plaintiff has relied on its’ service via email for the basis for its’ claims in this motion, it cannot rely on email service in response as a fatal flaw.

Code of Civil Procedure § 2033.280 addresses the failure to respond to requests for admissions:

If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter

4 (commencing with [Section 2018.010](#)). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with [Sections 2033.210, 2033.220, and 2033.230](#).

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with [Section 2023.010](#)).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with [Section 2033.220](#). It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with [Section 2023.010](#)) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

The court finds that responses to Plaintiff's Request for Admission were timely and any administrative errors in the document does not require the court to find otherwise. The court denies the motion to deem request for admissions admitted.

As the court has denied the motion any request for sanctions is moot.

TENTATIVE RULING #8: DEFENDANT'S MOTION TO DEEM ADMITTED THE MATTERS SPECIFIED IN THE REQUESTS FOR ADMISSION IS DENIED.

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